

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: July 2, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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100	Palmer vs. Holmes, 23-01362888	Defendant Warren Holmes will and hereby does move for an order: 1. Quashing Plaintiff's deposition subpoenas for production of business records directed to HCT Packaging, Inc., Mana Products, Inc., and First Stop Legal Documents 2. In the alternative, modifying the subpoenas to exclude trade secrets, patentable designs, mechanical drawings, product innovations, manufacturing specifications, and other proprietary intellectual property; 3. Issuing a protective order designating responsive materials as 'Highly Confidential' with disclosure limited to Plaintiff's counsel and designated experts only, with a

		carve-out permitting Defendant (appearing pro per) to review materials under appropriate restrictions; and 4. Awarding sanctions for abusive subpoena practice. Defendant brings this Motion pursuant to Code Civ. Proc., § 1987.1(a), which provides: If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person. Additionally, a motion to quash production of documents at a deposition must be accompanied by a separate statement setting forth the particular documents or demands at issue and the factual and legal reasons why production should not be compelled. [See CRC 3.1345(a)(5)] In this instance, on December 8, 2025, Plaintiff's counsel served deposition subpoenas for the production of business records on non-parties: (1) HCT Packaging, Inc. ("HCT") and (2) Mana Products, Inc. ("Mana"); and (3) First Stop Legal Documents ("First Stop"). (Decl. Dhaliwal¶12.) On 12/22/2025 Defendant objected. (Decl. Holmes¶13.) Thereafter on 12/31/2025 Defendant filed this Motion. (ROA 198.) Notably, despite this Motion involving three separate subpoenas and thirty-one (31) separate document requests, Defendant failed to file a separate statement as required by CRC 3.1345(a)(5). While Defendant is in pro per, this does not afford him special treatment. Pro pers must also abide by the same procedural rules – e.g., the Code of Civil Procedure and the California Rules of Court. (See <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284 ["pro per litigants are not entitled to special exemptions from the California Rules of Court or Code of Civil Procedure"]; <i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th 1229, 1246-1247 (internal citations and quotations omitted) ["Under the law, a
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		party may choose to act as his or her own attorney. Such a party is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys. Thus, as is the case with attorneys, pro. per. litigants must follow correct rules of procedure.”].) For this reason, the Motion is DENIED without prejudice. Because this issue was raised by the Court, no sanctions will be imposed. Additionally, the Court notes that from October-December 2025 Plaintiff’s counsel and Defendant attempted to work out a Stipulation and Protective Order with no resolution. (Decl. of Dhaliwal ¶¶5-11.) Moreover, there are four more pending discovery motions on calendar in August 2026 and January 2027 (trial is 8/3/2026). The Court encourages the parties to continue their meet and confer efforts. <i>Plaintiff to give notice.</i>
101	Rodriguez vs. Saathoff, 25-01531630	Defendants Bradley Jordan Saathoff and J.B. Hunt Transport Services, Inc. move for an order consolidating this action with Nunez vs. J B Hunt Transport Inc, Case No. 30-2026-01555419-CU-PA-CJC for all purposes. When there are actions involving common questions of law or fact pending, a court may order a joint trial of any or all of the matters in issue in the actions or may order all the actions consolidated, or such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay. (Code Civ. Proc., § 1048(a).) The instant action is a personal injury suit arising out of a January 5, 2025 vehicle collision. Plaintiff Luz Jessica Rodriguez alleges her vehicle was struck by a vehicle operated by Saathoff and owned by J.B. Hunt. The second action was filed by Yadira Nunez against the same defendants for motor vehicle and general negligence based on the same collision. Because these actions arise out of the same incident, they will involve common questions of fact regarding the vehicle collision. Moreover, it is likely that they will involve common questions of law, such as respondeat superior liability and issues regarding comparative fault. Thus, the Court finds consolidation for all purposes to be warranted here. In light of the above, the Motion to Consolidate is GRANTED. The Case Management Conference is continued to August 13, 2026 at 1:30 p.m.

		<i>Moving party to give notice.</i>
102	Kaufman vs. Varraveto, 25-01525302	Defendant Joseph Varraveto ("Defendant") demurs to the to the first cause of action for breach of guaranty, second cause of action for promissory fraud, and third cause of action for fraud in the inducement. Alternatively, Defendant asks the Court to stay the case pending the "resolution of Deliver It Overnight, LLC, Case No. 8:25-bk-10446-SC, currently pending before the U.S. Bankruptcy Court, Central District of California, given that Plaintiff seeks the same recovery under the same promissory note in both actions. See Cal. Code Civ. Proc. § 430.10(c); Cal. Civ. Proc. Code § 418.10(a)(2); <i>see also</i> <i>Caiafa Prof. Law Corp. v. State Farm Fire & Cas. Co.</i>, 15 Cal.App.4th 800, 804 (1993)." Defendant also requests judicial notice of: (1) the Secured Demand Promissory Note, entered into between Scott D. Kaufman ("Plaintiff" or "Kaufman") and DI Overnight, LLC ("DIO"), DI Logistics LLC, DI Overnight Investments, LLC, and DI Express, LLC on December 22, 2024, (2) Declaration Under Penalty of Perjury for Non-Individual Debtors, filed by Plaintiff, on behalf of DIO, in the matter entitled, Deliver It Overnight, LLC, Case No. 8:25-bk 10446-SC, currently pending in the U.S. Bankruptcy Court, Central District of California I. DEMURRER On June 12, 2026, Plaintiff Scott Kaufman, proceeding in pro per, filed the operative First Amended Complaint. Thus, the demurrer is moot pursuant to Code of Civil Procedure section 472(a), which states: "A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike." (Code Civ. Proc., § 472, subd. (a).) II. REQUEST FOR JUDICIAL NOTICE Defendant requests judicial notice of the following documents: 1. The Secured Demand Promissory Note, entered into between Scott D. Kaufman and DI Overnight, LLC, DI

		Logistics LLC, DI Overnite Investments, LLC, and DI Express, LLC on December 22, 2024. 2. The Declaration Under Penalty of Perjury for Non-Individual Debtors, filed by Plaintiff, on behalf of DIO, in the matter entitled, Deliver It Overnite, LLC, Case No. 8:25-bk 10446-SC, currently pending in the U.S. Bankruptcy Court, Central District of California on September 12, 2025. 3. The Schedule D: Creditors Who Have Claims Secured by Property, which was executed and filed by Plaintiff, on behalf of DIO, in the Bankruptcy Action, on September 12, 2025. 4. The Notice of Possible Dividend and Order Fixing Time to File Claims, filed by the Clerk of Court in the Bankruptcy Action on October 22, 2025. The request is DENIED as to the Secured Demand Promissory Note, entered into between Scott D. Kaufman and DI Overnite, LLC, DI Logistics LLC, DI Overnite Investments, LLC, and DI Express, LLC on December 22, 2024. "Although the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable." (<i>Fremont Indemnity Co. v. Fremont General Corp.</i> (2007) 148 Cal.App.4th 97, 113.) This promissory note is not attached to the operative Complaint and the Court will not consider or interpret the language and agreements contained in the Promissory Note. The request is GRANTED as to the remaining documents. "A court may take judicial notice of the [e]xistence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments." (<i>People v. Franklin</i> (2016) 63 Cal.4th 261, 280.) Likewise, "Courts can take judicial notice of the existence, content and authenticity of public records and other specified documents, but do not take judicial notice of the truth of the factual matters asserted in those documents." (<i>Dominguez v. Bonta</i> (2022) 87 Cal.App.5th 389, 400, as modified (Jan. 6, 2023).) III. MOTION TO STAY PENDING BANKRUPTCY MATTER Defendant also asks the Court to stay the case "because there is another action pending that impacts the rights of the same parties on the pending causes of action in this lawsuit. See Cal. Civ. Proc. Code § 418.10(a)(2); cf. Cal. Code Civ. Proc. § 430.10(c); <i>Caiafa Prof. Law Corp. v.</i>
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		<i>State Farm Fire & Cas. Co.</i>, 15 Cal. App. 4th 800, 804 (1993)." Plaintiff did not address this request. Code of Civil Procedure section 418.10(a)(2) states: "(a) A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: . . . (2) To stay or dismiss the action on the ground of inconvenient forum." (Code Civ. Proc., § 418.10, subd. (a)(2).) Code of Civil Procedure section 418.10(c) states: "(c) If the motion is denied by the trial court, the defendant, within 10 days after service upon him or her of a written notice of entry of an order of the court denying his or her motion, or within any further time not exceeding 20 days that the trial court may for good cause allow, and before pleading, may petition an appropriate reviewing court for a writ of mandate to require the trial court to enter its order quashing the service of summons or staying or dismissing the action. The defendant shall file or enter his or her responsive pleading in the trial court within the time prescribed by subdivision (b) unless, on or before the last day of the defendant's time to plead, he or she serves upon the adverse party and files with the trial court a notice that he or she has petitioned for a writ of mandate. The service and filing of the notice shall extend the defendant's time to plead until 10 days after service upon him or her of a written notice of the final judgment in the mandate proceeding. The time to plead may for good cause shown be extended by the trial court for an additional period not exceeding 20 days." The Court is not persuaded that this case should be stayed pending the resolution of the bankruptcy proceeding, Deliver It Overnite, LLC, Case No. 8:25-bk-10446-SC. Pursuant to the judicially noticeable documents, the bankruptcy proceeding does not involve any of the parties named in this action. "[A] bankruptcy stay is only effective as to the party in bankruptcy." (<i>Freiberg v. City of Mission Viejo</i> (1995) 33 Cal.App.4th 1484, 1488.)
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		In this action, the parties are Scott Kaufman, as an individual, and Joseph Varraveto, as an individual. The bankruptcy proceeding only concerns corporate debtors and creditors. Thus, the bankruptcy stay is not effective as to the parties in this action. The request to stay the matter is DENIED. The Case Management Conference is continued to September 3, 2026 at 1:30 p.m. <i>Moving party to give notice.</i>
103	Ally Bank vs. SDL Fire Protection Inc., 25-01531875	Plaintiff, Ally Bank ("Plaintiff"), moves for an order for writ of possession of a 2022 Ram 2500 motor vehicle, Vehicle Identification Number 3C7WR5HJ3NG223004. Two Applications for Writ of Possession were filed: one as to Defendant, SDL Fire Protection Inc., and the other as to Defendant, Gustavo Garcia Barajas aka Gustavo G. Barajas aka Gustavo Garcia aka Gustavo Barajas (collectively, "Defendants"). Plaintiff contends that it was assigned a contract whereby Defendants purchased from Plaintiff's assignor a 2022 Ram 2500 motor vehicle, Vehicle Identification No. 3C7WR5HJ3NG223004 (the "Subject Vehicle" or "2022 Ram 2500"), that Plaintiff is entitled to possession of the Subject Vehicle as the contract is in default and there remains unpaid and past due the installment due and owing on 11/16/2024 in the sum of \$514.24, and each of the regular payments of \$1,285.59 falling due thereafter, in addition to late and other charges, and that as of the filing of this action, there is a balance due and owing in the sum of \$58,995.50 together with other charges per the contract. Plaintiff thus asserts that its claim has probable validity, requiring the writ of possession to be issued. No opposition has been filed. Except under certain conditions, no writ of possession shall be issued except after a hearing on a noticed motion. (Code Civ. Proc. § 512.020(a).) Prior to the hearing required by Code of Civil Procedure section 512.020(a), the defendant shall be served with all of the following: (1) a copy of the summons and complaint; (2) a Notice of Application and Hearing; and (3) a copy of the application and any affidavit in support thereof. (Code Civ. Proc. § 512.030(a)(1)-(3).) The Court's file reflects that Defendants, SDL Fire Protection inc., a corporation, and Gustavo Garcia Barajas aka Gustavo G. Barajas aka Gustavo Garcia aka Gustavo Barajas, an individual were served with a copy

	of the summons and complaint, as well as copies of the notice of application and hearing and a copy of the application and supporting declarations by personal service on January 12, 2026, and January 1, 2026, respectively. Here, Plaintiff asserts a cause of action for claim and delivery against Defendants, SDL Fire Protection inc., a corporation, and Gustavo Garcia Barajas aka Gustavo G. Barajas aka Gustavo Garcia aka Gustavo Barajas, an individual. Plaintiff submits the declaration of Valerie Molina ("Molina"), an employee of Plaintiff, Ally Bank, whose duties include the review of accounts sent for litigation, and who has overseen the account of Defendants, SDL Fire Protection Inc., a corporation; Gustavo Garcia Barajas aka Gustavo G. Barajas aka Gustavo Garcia aka Gustavo Barajas, an individual, with respect to the subject motor vehicle. Molina provides that a contract was created by Premier Chrysler Dodge Jeep Ram of Buena Park dealership for the purchase of the subject 2022 Ram 2500 motor vehicle (the "Contract"), that "Defendant" secured financing for the Contract through Plaintiff, and that the dealership assigned all of its interest in the Contract to Plaintiff. (ROA 16, 17, Declaration of Valerie Molina ("Molina Decl."), ¶ 6.) Molina provides that all payments were made to Plaintiff, that Plaintiff provided consideration for the assignment and assumed all associated risks, that Plaintiff became the owner and "holder" of the Contract and acquired its interest in the collateral, i.e., the subject vehicle, that pursuant to the terms of the contract, upon a default of any provision thereof, Plaintiff has the right to immediate possession of the subject vehicle, and that said Contract is in default as Defendants SDL Fire Protection Inc., and Gustavo Garcia Barajas "failed to make the payment due and owing 11/16/2024 in the amount of \$514.24, or any of the regular monthly payments of \$1,285.59 due thereafter." (Molina Decl., ¶¶ 7-9.) Molina also provides that Plaintiff has made demand upon Defendants for surrender of possession of the subject vehicle to Plaintiff, but that Defendants have failed to surrender the same to Plaintiff. (Molina Decl., ¶ 9.) Molinda additionally provides that the account was "charged off on March 31, 2025, and there is due, owing, and unpaid to Plaintiff on account of the contract the sum of \$58,995.50, together with other charges" as provided in the Contract. (Ibid.) Molina further provides that the average wholesale and retail values of the subject motor vehicle is in the sum of
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	\$36,525 and \$43,625, respectively; that Plaintiff's file reflects that Defendants have possession of the subject vehicle; that Molina is informed and believes that Defendants are concealing possession of the subject vehicle from Plaintiff ; and that to the best of Molina's knowledge, information, and belief, the current location of the 2022 Ram 2500 is 4354 E. La Palma Ave., Anaheim , CA 92807 or 100 N. Ashford Pl., Fullerton, CA 92831. (Molina Decl., ¶¶ 10-11, 13.) Lastly, Molina provides that Molina has no knowledge of the subject motor vehicle, or any part thereof, being taken on account of tax, assessment or fine, or being seized under an execution or an attachment against the property of Plaintiff. (Molina Decl., ¶ 12.) Based on the foregoing, Plaintiff included all of the information required by Code of Civil Procedure section 512.010(b), and has met its burden to show that its claim to rightful possession of the subject 2022 Ram 2500 against Defendant SDL Fire Protection Inc. is probably valid. The application for writ of possession directed to Defendant SDL Fire Protection Inc. is GRANTED. If a writ of possession is issued, the court may also issue an order directing defendant to transfer possession of the subject property to plaintiff. The order must contain a notice to the defendant that failure to turn over the property to plaintiff may subject the defendant to being held in contempt of court. (Code Civ. Proc. § 512.070.) Accordingly, the Court ORDERS Defendant SDL Fire Protection Inc. to transfer possession of the subject 2022 Ram 2500 to Plaintiff. Defendant SDL Fire Protection Inc. is given notice that failure to turn over the subject 2022 Ram 2500 to Plaintiff may subject Defendant, SDL Fire Protection Inc. to being held in contempt of court. As to Application for Writ of Possession directed towards Defendant, Gustavo Garcia Barajas aka Gustavo G. Barajas aka Gustavo Garcia aka Gustavo Barajas, Plaintiff has submitted no evidence showing this individual defendant had any obligation under the Contract. Despite Plaintiff's contentions, the subject Contract indicates that it was made between the dealership and Defendant, SDL Fire Protection Inc. The Confirmation of Assignment of Retail Installment Sale Contract also indicates that the "Customer" that entered into the Contract is SDL Fire Protection Inc., and the California Certificate of Title indicates that the registered owner is SDL Fire Protection Inc. (See Exs. A and B to Molina Decl.) Thus, Plaintiff has not met its burden to prove that its claim to rightful
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		possession of the collateral at issue is probably valid as against Defendant, Gustavo Garcia Barajas aka Gustavo G. Barajas aka Gustavo Garcia aka Gustavo Barajas, and that Application for Writ of Possession is DENIED. <i>Undertaking</i> Here, the total amount due, owing, and unpaid, to Plaintiff under the Contract is \$58,995.50, together with other charges as provided in the Contract, and the average wholesale and retail values of the subject motor vehicle are in the sums of \$36,525 and \$43,625, respectively. (Molina Decl., ¶¶ 9-10, Ex. C.) As such, it appears that Defendant, SDL Fire Protection Inc. has no interest in the collateral, and the Court waives the requirement that Plaintiff post an undertaking. The amount of Defendant SDL Fire Protection Inc.'s undertaking if the Plaintiff recovers judgment on the action for all costs awarded to the Plaintiff and all damages that the Plaintiff may sustain by reason of the loss of possession of the property sufficient to satisfy the requirements of subdivision (b) of Section 515.020 shall be \$58,995.50 based on the Molina Declaration which provides that the total amount due, owing, and unpaid, to Plaintiff under the Contract is \$58,995.50, together with other charges as provided in the Contract. (Molina Decl., ¶ 9.) The Case Management Conference will be continued to August 20, 2026 at 1:30 p.m. <i>Plaintiff to give notice.</i>
104	Westcoast Therapy, Inc. vs. Xavier, 22-01256587	Defendant, Angelica Xavier, in pro per ("Defendant"), moves for an order compelling binding arbitration pursuant to Code of Civil Procedure section 1281.2 and staying all proceedings pending completion of arbitration pursuant to Code of Civil Procedure section 1281.4. As a threshold matter, the Court considers the opposition that was filed and served one-day late. While a paper may not be rejected for filing on the ground that it was untimely submitted for filing, the court, in its discretion, may refuse to consider a late filed paper. (California Rules of Court, rule 3.1300(d).) If the court does so, the minutes or order must so indicate. (Ibid.) In determining whether to receive an untimely filed document, "trial courts must consider the specific contexts in which such motions arise and should employ a flexible rather than rigid or formalistic approach to decisionmaking." (<i>Kapitanski v. Von's Grocery Co.</i> (1983) 146 Cal.App.3d 29, 32-33.) "An attorney's neglect in untimely filing opposing papers must be evaluated in light of the reasonableness of the attorney's conduct. [Citation.]"

		(<i>Id.</i> at p. 33.) “Also pertinent are the effects of strict enforcement on the rights of the parties and the furtherance of justice. [Citations.]” (<i>Ibid.</i>) Here, although Defendant provides that the opposition was served one day late, as well as was not served by electronic service such that Defendant’s time to review and respond to the opposition was “materially reduced,” Defendant does not show any prejudice from late opposition. Defendant timely filed and served a reply. <i>Merits</i> Defendant contends that this action arises from contracts that require mediation as a condition precedent and, if mediation fails, binding arbitration, and that despite mandatory ADR provisions, Plaintiff, Westcoast Therapy, Inc. (“Plaintiff”), initiated litigation rather than mediation or arbitration, and thereby breached the ADR provisions. Defendant asserts that she did not waive the right to arbitration. Plaintiff contends that the parties entered into three (3) separate agreements, only one of which contains an arbitration provision; that the arbitration provision is unenforceable; and that even if it were enforceable, it would be enforceable only as to the Confidentiality and Proprietary Rights Agreement. Plaintiff also asserts that the law of this case has already been established as this Court has ruled on the issue of arbitration and determined that Defendant waived the right to arbitrate in March of 2025 when the Court denied Defendant’s motion to dismiss. Plaintiff additionally asserts that the statute of limitations has run as Defendant filed this motion on May 6, 2026, more than four years after Plaintiff last refused to arbitrate on April 28, 2022. Lastly, Plaintiff contends that assuming the law of the case has not been established, which it has, and assuming that the statute of limitations has not run, which it has, and assuming that the all three (3) agreements contained an arbitration provision, which they do not, and finally assuming that the arbitration provision in the Confidentiality Agreement was enforceable, which it is not, Defendant has still waived her right to arbitrate. <i>Existence of Agreement to Arbitrate</i> Here, Defendant has shown, and Plaintiff does not dispute, that an agreement to arbitrate exists in an agreement entitled, “Confidentiality and Proprietary Rights Agreement (California)” (the “Confidentiality Agreement”). (Ex. 1 to Motion, Confidentiality Agreement.) The Confidentiality Agreement states, in part:
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		"2. Dispute Resolution. Upon the occurrence of any dispute or disagreement the Parties hereto arising out of or in connection with any term or provision of this Agreement, the subject matter hereof, or the interpretation or enforcement hereof (in each case, a "Dispute"), the Parties shall engage in informal, good faith discussions and attempt to resolve the Dispute during a period of ten (10) Business Days after a Party (the "Plaintiff") notifies the other Party (the "Defendant") of such Dispute in writing. If the Parties are unable to resolve the Dispute during such period, then the Parties shall comply with the following dispute resolution procedures: "(a) Mediation. [¶.] "(b) Arbitration. If the Parties are unable to resolve the Dispute pursuant to Section 2(a) above, then the Parties shall submit the Dispute to final and binding arbitration in Los Angeles, California, administered by JAMS, or its successor, in accordance with the rules and procedures of JAMS then in effect, within ten (10) Business Days after conclusion of the mediation contemplated in Section 2(a) above. The Parties agree that any and all Disputes that are submitted to arbitration in accordance with this Agreement shall be decided by a neutral arbitrator who is a retired judge or attorney licensed to practice law and who is experienced in complex commercial transactions . . . " (Ex. 1 to Motion, Confidentiality Agreement, § 2(a)-(b).) However, based on the allegations in the Complaint, that is not the only agreement between the parties that is at issue in this action. The Complaint alleges that there are three (3) agreements: X Brands Asset Purchase Agreement ("XB APA"), that Good Bites Asset Purchase Agreement ("GB APA") and that Confidentiality and Proprietary Rights Agreement ("Confidentiality Agreement"). (Complaint, ¶ 10.) Plaintiff's counsel provides that XB APA and GB APA do not contain arbitration provisions. (Declaration of Shanon Slack ("Slack Decl."), ¶ 4.) Defendant does not show that any of Plaintiff's claims in this action fall within the scope of the arbitration clause in the Confidentiality Agreement, nor does Defendant address the XB APA and GB APA relative to the Confidentiality Agreement. Therefore, Defendant does not meet her burden to show the existence of an arbitration agreement that encompasses the claims in this action. Even assuming that Defendant did meet this burden, Defendant's motion to compel arbitration is untimely, and she has waived her right to arbitrate, as discussed below.
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Statute of Limitations

Plaintiff contends that the statute of limitations has run, and that a petition to compel arbitration must be brought within four years after the party to be compelled has refused to arbitrate, citing to *Wagner Construction Co. v. Pacific Mechanical Corp.* (2007) 41 Cal.4th 19.

The California Supreme Court in *Wagner Construction Co. v. Pacific Mechanical Corp.* (2007) 41 Cal.4th 19 explained as follows: "A petition to compel arbitration must be brought within four years after the party to be compelled has refused to arbitrate. [Citation.] This rule has nothing to do with the statute of limitations on the underlying claims. Instead, the rule reflects our understanding that a petition to compel arbitration states a separate cause of action subject to its own limitation period. As we have explained, '[a]n action to compel arbitration "is in essence a suit in equity to compel specific performance of a contract" ' and is, thus, subject to the four-year statute of limitations for actions founded upon written contracts. [Citations.]'" (*Wagner Construction Co. v. Pacific Mechanical Corp.* (2007) 41 Cal.4th 19, 29.) "Under section 1281.2, 'a party to an agreement to arbitrate may not bring an action to compel specific performance of the arbitration provision until he or she can allege not only the existence of the agreement, but also that the opposing party refuses to arbitrate the controversy. Therefore, it appears that a cause of action to compel arbitration does not accrue until one party has refused to arbitrate the controversy.' [Citation.]" (*Ibid.*)

Although Defendant filed a motion to compel arbitration, as opposed to a petition to compel arbitration, there is no basis for treating a motion different from a petition. Applying the above rules to Defendant's motion to compel arbitration, Defendant's action to compel Plaintiff to arbitrate accrued on April 28, 2022, when Plaintiff refused to arbitrate, and Defendant filed the instant motion to compel arbitration on May 6, 2026, more than four years after Plaintiff refused to arbitrate. (Slack Decl., ¶ 4.) As a result, Defendant's motion to compel was untimely under the applicable statute of limitations.

Law of the Case

Plaintiff contends that the law of case has already been established as this Court has ruled on the issue of arbitration and determined that Defendant waived the right to arbitrate.

" 'The doctrine of "law of the case" deals with the effect of the first appellate decision on the subsequent retrial or

	appeal: The decision of an appellate court, stating a rule of law necessary to the decision of the case, conclusively establishes that rule and makes it determinative of the rights of the same parties in any subsequent retrial or appeal in the same case.' [Citation.]" (<i>Morohoshi v. Pacific Home</i> (2004) 34 Cal.4th 482, 491.) A prior ruling by this Court does not implicate the law of the case doctrine as it is not an appellate decision, nor is this motion part of a retrial or appeal. In fact, a trial court has the inherent power to reconsider its own interim rulings. (<i>Le Francios v. Goel</i> (2005) 35 Cal. 4th 1094, 1108; <i>Golden Door Properties, LLC v. Superior Court of San Diego County</i> (2020) 53 Cal.App.5th 733, 788; <i>In re Marriage of Barthold</i> (2008) 158 Cal. App. 4th 1301, 1307-08.) "Even without a change of law, a trial court may exercise its inherent jurisdiction to reconsider an interim ruling. [Citation.]" (<i>Pinela v. Neiman Marcus Group, Inc.</i> (2015) 238 Cal.App.4th 227, 237.) Based on the foregoing, Plaintiff fails to show that the law of the case doctrine applies in this case and/or dictates the ruling on Defendant's instant motion to compel arbitration. <i>Waiver</i> Plaintiff contends that Defendant has still waived her right to arbitrate as this action was filed on April 26, 2022, and Defendant was aware of her right to arbitrate the Confidentiality Agreement as early as August 1, 2021, when the agreement was executed, and no later than April 28, 2022, when Defendant's then counsel, Matthew Urbach, contacted Plaintiff's counsel regarding arbitration, but has acted in a manner that suggested that she did not intend to invoke her purported right to arbitrate. Separate from the statute of limitation for a petition to compel arbitration, a party may not postpone arbitration indefinitely by delaying the demand. (<i>Wagner Construction Co. v. Pacific Mechanical Corp.</i> (2007) 41 Cal.4th 19, 29.) "[A] party may waive the right to compel arbitration by failing to demand arbitration within a time limit specified for that purpose in a statute. [Citations.] A party may also waive the right to compel by failing to comply with a time limit for demanding arbitration specified in the contract. [Citation.]" (<i>Id.</i> at p. 30.) "When no time limit for demanding arbitration is specified, a party must still demand arbitration within a reasonable time. [Citation.] This rule is an application of the general principle of contract law articulated in Civil Code section 1657, to the effect that, '[i]f no time is specified for the performance of an act required to be performed, a reasonable time is allowed.' [Citation.]
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		'[W]hat constitutes a reasonable time is a question of fact, depending upon the situation of the parties, the nature of the transaction, and the facts of the particular case.' [Citation.]" (<i>Ibid.</i>) "[I]n determining whether a party to an arbitration agreement has lost the right to arbitrate by litigating the dispute, a court should treat the arbitration agreement as it would any other contract, without applying any special rules based on a policy favoring arbitration. That is, courts should apply the same procedural rules that they would apply to any other contract. [Citation.]" (<i>Quach v. California Commerce Club, Inc.</i> (2024) 16 Cal.5th 562, 583 ("Quach").) Determining whether a party has lost its right to compel arbitration as a result of its litigation-related conduct is governed by generally applicable state law contract principles, and these principles do not require a showing of prejudice to establish waiver. (<i>Ibid.</i>) "To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it. [Citations.]" (<i>Quach, supra</i>, 16 Cal.5th at p. 584.) "Under the clear and convincing evidence standard, the proponent of a fact must show that it is 'highly probable' the fact is true. [Citation.] The waiving party's knowledge of the right may be 'actual or constructive.' [Citation.]" (<i>Ibid.</i>) "Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable factfinder to conclude that the party had abandoned it. [Citation.]" (<i>Ibid.</i>) "The waiver inquiry is exclusively focused on the waiving party's words or conduct; neither the effect of that conduct on the party seeking to avoid enforcement of the contractual right nor that party's subjective evaluation of the waiving party's intent is relevant. [Citations.]" (<i>Id.</i> at p. 585) "This distinguishes waiver from the related defense of estoppel, 'which generally requires a showing that a party's words or acts have induced detrimental reliance by the opposing party.' [Citations.]" (<i>Ibid.</i>) "To establish waiver, there is no requirement that the party opposing enforcement of the contractual right demonstrate prejudice or otherwise show harm resulting from the waiving party's conduct. [Citations.]" (<i>Ibid.</i>) "Although a written agreement to arbitrate an existing or future dispute is generally enforceable, a petition to compel arbitration will be denied when the right has been waived by the proponent's failure to properly and timely
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assert it. [Citations.]” (*Guess?, Inc. v. Superior Court* (2000) 79 Cal.App.4th 553, 557 [finding right to arbitrate was waived where defendant knew about the arbitration provision since before the lawsuit was filed and served, but waited three months to demand arbitration, did not plead its purported right to arbitrate as an affirmative defense, acted inconsistently with the right to arbitrate as it fully participated in the discovery process, and caused prejudice to plaintiff].) “At a minimum, the failure to plead arbitration as an affirmative defense is an act inconsistent with the later assertion of a right to arbitrate.” (*Id.* at p. 558.)

Here, Defendant submits a declaration stating, “[f]rom the beginning of this case, I raised mediation and arbitration in communications, pleadings, and court proceedings.” (Declaration of Angelica Xavier, ¶ 3.) Defendant also states, “I did not intentionally waive my right to arbitration. Any delay occurred during the COVID-19 pandemic while I was self-represented and suffering from traumatic brain injuries caused by multiple serious motor vehicle accident.” (*Id.*, ¶ 5.) Defendant additionally states, “[a]t no point during the Case Management Conference on March 6, 2025, or any other hearing, did I state that I preferred a jury trial over arbitration; I was simply following the court’s procedural scheduling while continuing to seek ADR.” (*Id.*, ¶ 4.)

The motion attaches exhibits includes Defendant’s motion to set aside default and default judgment filed on March 23, 2023, where Defendant references that the Confidentiality Agreement requires the parties to first mediate and if unsuccessful, then proceed to JAMS Arbitration; Defendant’s Answer dated March 18, 2023, stating that Defendant “reserves the right to file an Amended Answer should this Court deny her forthcoming motions for JAMS Mediation and Arbitration if necessary;” and a Minute Order dated September 29, 2022, for a Case Management Conference indicating that Defendant requested to attend mediation. (Exs. 3-5 to Motion.) Defendant also attaches a Minute Order dated March 6, 2025, for a Case Management Conference where a jury trial was scheduled. (Ex. 7 to Motion.)

The foregoing shows that Defendant made no mention of arbitration at the September 29, 2022, Case Management Conference, and that Defendant subsequently raised the issue of arbitration in March 2023. The problem, however, is that Defendant never moved to compel arbitration, or otherwise took any action to compel arbitration.

		Notably, Plaintiff's counsel provides that on April 28, 2022, Plaintiff's counsel was contacted by Matthew Urbach, Esq., Defendant's then-counsel, and that Plaintiff's counsel informed Mr. Urbach that Plaintiff refused to arbitrate. (Slack Decl., ¶ 4; see Ex. 8 to Motion.) Thereafter, on July 29, 2022, Plaintiff's counsel informed Mr. Urbach that Plaintiff was willing to move forward with arbitration, and subsequently provided Mr. Urbach with the names of five (5) different mediators, but that neither Mr. Urbach nor Defendant ever followed up with Plaintiff's counsel regarding arbitration or mediation. (Id., ¶ 5.) Despite the fact that Defendant may have raised the issue of arbitration in 2022 and March 2023, Defendant never sought to compel arbitration, and did not follow up with Plaintiff's counsel in July 2022 when Plaintiff's counsel informed Defendant's then-counsel that Plaintiff was willing to arbitrate. Defendant did not properly seek to compel arbitration until Defendant filed this motion on May 6, 2026, more than four (4) years after Defendant requested arbitration in April 2022. To the extent that Defendant's motion to dismiss that was filed on March 11, 2025, could be construed as an attempt to compel arbitration, Defendant waited nearly three (3) years after Plaintiff informed Defendant's then-counsel on April 28, 2022, that Plaintiff refused to arbitrate to file that motion. The failure to seek to compel arbitration for years despite Defendant's knowledge of the arbitration provision in the Confidentiality Agreement constitutes conduct that is inconsistent with an intent to enforce the right to arbitrate so as to lead to the conclusion that Defendant has abandoned the right to arbitrate. Thus, the evidence indicates that Defendant has waived the right to arbitrate. Based on the foregoing, Defendant's motion to compel arbitration is DENIED. <i>Plaintiff to give notice.</i>
105	Fenning vs. Alvord, 25-01519619	Defendant, Judith Alvord ("Defendant"), moves for an order quashing the service of summons and Complaint. Defendant contends that the Court lacks jurisdiction over her as she has not been properly served with the summons and Complaint. Defendant asserts that the process server's declaration as to the alleged service of summons and Complaint on Defendant is false as she would out of the country on vacation, and not at home when she was allegedly personally served.

	Code of Civil Procedure section 418.10, subdivision (a)(1) provides that a defendant may serve and file, "on or before the last day of his or her time to plead or within any further time that the court may for good cause allow" a notice of motion "to quash service of summons on the ground of lack of jurisdiction of the court over him or her." Proper service of the summons and complaint is required for the court to obtain jurisdiction over defendants. (Code Civ. Proc. § 410.50(a); <i>Ziller Electronics Lab GmbH v. Superior Court</i> (1988) 206 Cal.App.3d 1222, 1229; <i>Dill v. Berquist Const. Co., Inc.</i> (1994) 24 Cal.App.4th 1426, 1439.) The court has no jurisdiction over a person who is not served with a complaint personally or by any other acceptable method. (See <i>Kappel v. Bartlett</i> (1988) 200 Cal.App.3d 1457, 1464 [finding that a complaint that was not served personally or by any other method upon a defendant conferred no jurisdiction upon the court over the defendant].) "Service of process is the means by which a court having jurisdiction over the subject matter asserts its jurisdiction over the party and brings home to him reasonable notice of the action. [Citation.] It is an indispensable element of due process of law. [Citation.]" (<i>Ibid.</i>) "When a defendant challenges the court's personal jurisdiction on the ground of improper service of process 'the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.' " (<i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413.) " 'When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction.' [Citation.]" (<i>Preciado v. Freightliner Custom Chassis Corp.</i> (2023) 87 Cal.App.5th 964, 975-976.) " 'The plaintiff must come forward with affidavits and other competent evidence to carry this burden and cannot simply rely on allegations in an unverified complaint.' [Citation.]" (<i>Id.</i> at p. 976.) If plaintiff meets this burden, "it becomes the defendant's burden to demonstrate that the exercise of jurisdiction would be unreasonable." (<i>Buchanan v. Soto</i> (2015) 241 Cal.App.4th 1353, 1362.) Here, initially, no opposition has been filed, and Plaintiff, Richard Scott Fenning, has not submitted proof of the existence of jurisdiction by proving that Defendant has been properly served. Nevertheless, the Court's file reflects that a proof of service of summons was filed on October 30, 2025, and it provides that Defendant was personally served with the summons and Complaint on
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		October 24, 2025, at 6:59 p.m. by a registered California process server. (ROA 14.) In California, there is a presumption of valid service if done by a registered process server under California Evidence Code section 647. "Evidence Code section 647 provides that a registered process server's declaration of service establishes a presumption affecting the burden of producing evidence of the facts stated in the declaration. (<i>See also Floveyor Internat., Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 795, 69 Cal.Rptr.2d 457 [filing of proof of service that complies with the applicable statutory requirements creates a rebuttable presumption of proper service].)" (<i>American Express Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 390.) To rebut the presumption of proper service arising from a registered process server's declaration, the party seeking relief is required to present evidence that he was not so served. (<i>Ibid.</i>; <i>Rodriguez v. Cho</i> (2015) 236 Cal.App.4th 742, 750.) Although the registered process server's declaration of service establishes a presumption of valid service, Defendant rebuts the presumption of proper service by submitting a declaration which provides that she has lived alone at her residence for 36 years; that from October 18, 2025, through November 1, 2025, she was out of the country on vacation, and no one was at home when she was allegedly personally served; that she has never met or in any way interacted with Plaintiff's process server; and that other than the alleged attempted service on October 24, 2025, she is unaware of any other attempts to serve her, and she has not been personally served. (ROA 17, Declaration of Judith Alvord, ¶¶ 2-5, Ex. A.) Based on the foregoing, the Court GRANTS Defendant's motion to quash service of summons and Complaint. The Case Management Conference is continued to August 27, 2026 at 1:30 p.m. <i>Defendant to give notice.</i>
106	Hunter vs. Stor It Self Storage-Costa Mesa, Inc., 22-01279230	<u>MOTION TO DISMISS</u> Defendants Stor It Self Storage-Costa Mesa, Inc. and S.I. Management, LLC (together, "Stor-It Defendants") move for an Order dismissing the Third Amended Complaint and this action in its entirety with prejudice for Plaintiff's delay in prosecution; alternatively, monetary sanctions of \$1,400 for the fees incurred in preparing this Motion in addition to the unpaid monetary sanctions of \$1,485, and any further relief this Court deems just and proper.

		Plaintiff filed this action nearly four years ago, on September 8, 2022. Since then, Plaintiff has repeatedly missed deadlines imposed by the Court and failed to appear, as detailed in the declaration of Joel Brodfuehrer filed in support of the motion. (Brodfuehrer Decl. ¶¶ 3-12.) In particular, Plaintiff has failed to remit payment of the Court-ordered sanctions and has also failed to produce the discovery documents previously ordered by this Court. Stor-It Defendants bring this motion pursuant to Code of Civil Procedure §§ 583.410-583.430. Pursuant to section 583.410, “[t]he Court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.” (CCP § 583.410.) The failure to bring an action to trial within two years of filing is grounds for discretionary dismissal. (CRC 3.1340(a).) The papers supporting a motion to dismiss under § 583.410 must be filed and served at least 45 days prior to the hearing. (CRC 3.1342(a).) Stor-It Defendants served the moving papers on April 6, 2026, more than 45 days before the scheduled hearing. Plaintiff has not filed a timely opposition to the motion. “The failure of the opposing party to serve and file a written opposition may be construed by the court as an admission that the motion [to dismiss] is meritorious, and the court may grant the motion without a hearing on the merits.” (CRC 3.1342(b).) Instead, three days before the hearing, Plaintiff filed a handwritten opposition indicating, that “I am not able to competently prosecute the instant action and provide competent deposition testimony and request this court about 30 days for me to retain counsel to represent me.” Plaintiff also complains of effects from being struck by a vehicle in 2022 and from falling down a flight of stairs in 2023. She also claims to have initiated a bankruptcy proceeding. The complaint in this case was filed by Plaintiff in pro per on September 8, 2022 (ROA 1.) Since as early as September 28, 2023, Plaintiff has claimed to be attempting to retain counsel. (9/28/2023 Minute Order; ROA 85 (“Plaintiff stated that she has been speaking with a law firm who may be retained and may turn this case into a class action lawsuit.”); see also 11/16/2023 Minute Order; ROA 106 (“Plaintiff stated . . . she is speaking with a couple of attorneys to take the case over.”);
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In addition, the Court advised Plaintiff that if the case was not brought to trial within three years, the case could be dismissed. (1/16/2025 Minute Order; ROA 213 ("The Court advised Plaintiff of the five-year deadline on the case and if no trial is set, the case may be dismissed on motion of the defense. Plaintiff further advised that things could happen after three years if certain things didn't happen.").)

While the Court is sympathetic to the various medical issues suffered by Plaintiff and her spouse, these issues are not new. Nor are they a basis for the continued willful violation of this Court's prior orders. The Court will grant afford one final grace toward Plaintiff. The motion to dismiss is DENIED. The alternative request for additional monetary sanctions is GRANTED in the amount of \$1,400. The new sanction award of \$1,400 and the prior unpaid sanction award of \$1,485 are ordered to be paid within 30 days. In addition, Plaintiff is ordered to make herself available for deposition within 30 days. If Plaintiff fails to pay the additional sanctions awards, and Plaintiff fails to appear for her deposition, moving parties are granted leave to re-file their motion to dismiss and to seek an ex parte advancing the hearing the date.

Stor-It Defendants to give notice.

MOTION FOR RECONSIDERATION

Plaintiff Ruby Hunter's Moves for Reconsideration of the Court's 1-15-2026 Order. The hearing on the Motions to Compel were originally set for 1/8/26, per a Minute Order granting Defendants' ex parte application to advance the hearing dates. (ROA 260). Subsequently, on 12/29/26, the Court issued a Minute Order continuing the hearings on its own motion to 1/15/26. (ROA 270.) The Minute Order did not state that the briefing deadlines were tied to the original 1/8/26 hearing date. Plaintiff filed timely oppositions on 12/31/26, which was the deadline based on the new 1/15/26 hearing date.

In viewing the oppositions, it appears that Plaintiff attached discovery responses, including substantially compliant responses to Requests for Admission.

Defendants filed a reply to the oppositions, stating that the oppositions were untimely because they were not served in time for the original 1/8/26 hearing date, and that the oppositions had not been served on Defendants. Defendants also stated that they were not served with the discovery responses. However, the oppositions and the discovery responses have proofs of service indicating email service on Defendants' counsel.

		Plaintiff request to reconsider the order deeming matters admitted is GRANTED. Where a motion to deem responses admitted is pending, the court “shall” grant the motion “unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response ... in substantial compliance with Section 2033.220.” [CCP § 2033.280(c); <i>St. Mary v. Sup.Ct. (Schellenberg)</i> (2014) 223 Cal.App.4th 762, 778 (citing Weil & Brown, <i>Cal Prac. Guide: Civ. Pro Before Trial</i> (The Rutter Group))] Attached to Plaintiff’s opposition to the motion to deem matters admitted (ROA 273) are verified responses without objections. Plaintiff responds to each request with “Deny.” These are code compliant responses. As a result, having considered the motion again, the Court now finds that the opposition was timely filed and DENIES the motion to find the requests for admission to be deemed admitted. However, the sanction award remains the same. <i>Stor-It Defendants to give notice.</i>
107	Shee vs. Han, 24-01402403	<u>DEMURRER</u> Defendant Lisa Han (“Han”) demurs to Plaintiff’s first, second and fourth causes of action in the Second Amended Complaint. The SAC alleges that Plaintiff and Han purchased property together in May 2013, had a falling out in December 2013, and that Han shortly thereafter misled Plaintiff into signing away her ownership interest in the property by executing a grant deed. (SAC ¶¶ 11-14.) Plaintiff alleges that in October 2020, Han put the property up for sale and requested that Plaintiff sign an affidavit of insured deed, as she was still on the mortgage. (SAC ¶ 17.) Plaintiff refused. (SAC ¶ 17.) Plaintiff alleges she learned on September 15, 2022 that escrow had closed anyway. (SAC ¶ 17.) Han refused to pay any of the funds from the sale to Plaintiff. (SAC ¶ 18.) Han contends that all three causes of action pled against her in the SAC are barred by the applicable statutes of limitations, and that Plaintiff has not sufficiently alleged facts to support the application of the discovery rule. The relevant causes of action are (1) the first cause of action for constructive trust; (2) the second cause of action for money had and receive; and (3) the fourth cause of action for fraud – concealment.

Plaintiff does not dispute Han's contention that the applicable statutes of limitations for these causes of action are, at the most, three years for money had and received where based on fraud (or, otherwise, two years); three years for fraud; and that constructive trust, which is a remedy, is subject to the limitation period of the underlying substantive right (in this case, no more than three years).

As Han points out, Plaintiff concedes she received actual notice of the open escrow (and pending sale) in October 2020. Plaintiff does not provide any explanation for why she failed to investigate the sale at the time, or why she was unable to discover the completed sale (or the October 14, 2020 recorded grant deed) until September 2022 despite reasonable diligence.

Plaintiff contends that the initiation of this action on May 24, 2024 was timely because, as alleged in the SAC, "she first discovered on or about September 15, 2022 that Escrow had closed anyway and sale monies had been disbursed for an approximate purchase price of \$880,000, netting a total profit of approximately \$515,000." (SAC ¶ 17.) In other words, Plaintiff contends that she initiated this action less than two years after she discovered the wrongdoing.

"Under the discovery rule, the statute of limitations begins to run when the plaintiff suspects or should suspect that [their] injury was caused by wrongdoing, that someone has done something wrong to [them]." (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110.) To benefit from the discovery rule, a plaintiff "must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence." (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806.)

Here, Plaintiff has not pleaded sufficient facts to invoke the discovery rule. She has not pleaded any facts to show the manner of discovery or the inability to have made earlier discovery despite reasonable diligence.

Accordingly, Han's demurrer is SUSTAINED. Because this is Han's first challenge to Plaintiff's pleading, the Court grants 20 days leave to amend.

Defendant Han to give notice.

DEMURRER AND MOTION TO STRIKE

Defendants Escrow Options Group ("EOG") and Shastin Angel ("Angel") (together, "Defendants") demur to

	Plaintiff's third cause of action for breach of fiduciary in the Second Amended Complaint. They also seek an order striking Plaintiff's prayer for punitive damages and for attorney's fees in connection with the third cause of action. This Court previously sustained Defendants' demurrer to Plaintiff's breach of fiduciary duty cause of action as pled in the initial Complaint, with leave to amend. In California, "[t]he elements of a claim for breach of fiduciary duty are (1) the existence of a fiduciary relationship, (2) its breach, and (3) damage proximately caused by that breach." (<i>O'Neal v. Stanislaus County Employees' Retirement Assn.</i> (2017) 8 Cal.App.5th 1184, 1215.) "A fiduciary relationship is any relation existing between parties to a transaction wherein one of the parties is in duty bound to act with the utmost good faith for the benefit of the other party." (<i>Wolf v. Superior Court</i> (2003) 107 Cal.App.4th 25, 29, as modified on denial of reh'g (Mar. 20, 2003) [citations omitted].) "Such a relation ordinarily arises where a confidence is reposed by one person in the integrity of another, and in such a relation the party in whom the confidence is reposed, if he voluntarily accepts or assumes to accept the confidence, can take no advantage from his acts relating to the interest of the other party without the latter's knowledge or consent." (<i>Ibid.</i>) "Traditional examples of fiduciary relationships in the commercial context include trustee/beneficiary, directors and majority shareholders of a corporation, business partners, joint adventurers, and agent/principal." (<i>Id.</i> at 30.) As she did in her initial Complaint, Plaintiff again alleges that she purchased real property with defendant Lisa Han. (SAC ¶11.) Plaintiff and Han subsequently had a falling out. (SAC ¶13.) After the falling out, Han allegedly pressured Plaintiff into signing a grant deed transferring Plaintiff's interest in the property into Han's name alone. (SAC ¶13.) However, according to Plaintiff, Han disguised the true nature of the grant deed and Plaintiff was unaware that Han intended to keep the property for herself. (SAC ¶14.) Han allegedly agreed to pay Plaintiff the amount that Plaintiff had paid toward the down payment on the property, but never did so. (SAC ¶16, 18.) Plaintiff alleges that in October of 2020, she was contacted by EOG with a request that Plaintiff sign an
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	"affidavit of insured deed." (SAC ¶ 17.) This was how Plaintiff first learned that Han had put the property up for sale. (SAC ¶ 17.) Han needed Plaintiff's signature because Plaintiff was still on the mortgage to the property. (SAC ¶ 17.) Plaintiff reused to sign the affidavit; however, escrow closed anyway and sale monies were disbursed. (SAC ¶ 17.) Plaintiff alleges that EOG and escrow agent Angel were aware of Plaintiff's refusal to sign the affidavit and had been contacted by Plaintiff's father regarding issues with title to the property, yet still facilitated the close of escrow. (SAC ¶ 19.) Plaintiff has still failed to allege a fiduciary relationship. Plaintiff was not a party to the escrow. As this Court stated in sustaining Defendants' previous demurrer, in <i>Summit Financial Holdings, Ltd. v. Continental Lawyers Title Co.</i> (2002) 27 Cal.4th 705, 711, the Supreme Court explained an escrow holder is an agent and fiduciary of the parties to the escrow. "The agency created by the escrow is limited—limited to the obligation of the escrow holder to carry out the instructions of each of the parties to the escrow." (<i>Ibid.</i>) An escrow holder "has no general duty to police the affairs of its depositors." (<i>Ibid.</i>) Further, the court in <i>Lee v. Title Ins. & Trust Co.</i> (1968) 264 Cal.App.2d 160, 162–163, held an escrow holder has no general duty to go beyond the escrow instructions and to disclose suspicious facts or circumstances. Plaintiff cites to <i>Diaz v. United California Bank</i> (1977) 71 Cal.App.3d 161 and <i>Virtanen v. O'Connell</i> (2006) 140 Cal.App.4th 688 as supporting the proposition that an escrow holder can owe fiduciary duties to a third party that is not a party to the escrow transaction. <i>Diaz</i> is inapposite because it involved whether the escrow holder breached a duty to one of the parties to the escrow transaction when it ignored a conflicting instruction given by that party. (See <i>Diaz v. United California Bank</i> (1977) 71 Cal.App.3d 161.) Here, the SAC alleges that Plaintiff and her father (neither of whom is alleged to have been a party to the escrow) attempted to notify Defendants that there was a conflict implicating the escrow. <i>Virtanen</i> is similarly inapposite, as it also involved an escrow holder's duties when presented with conflicting instructions from the parties to the escrow. (See <i>Virtanen v. O'Connell</i> (2006) 140 Cal.App.4th 688.) Accordingly, because Plaintiff has not pled a fiduciary relationship between herself (a nonparty to the escrow)
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		and the moving Defendants, the demurrer is SUSTAINED. Although this is Plaintiff's third attempt to plead this cause of action, the Court will grant one final opportunity for Plaintiff to amend her pleading. Plaintiff shall 20 days leave to amend. In light of the Court's ruling on the demurrer, the Motion to Strike is MOOT. The Case Management Conference is continued to October 1, 2026 at 1:30 p.m. Finally, the Court notes that Plaintiff has filed an ex parte to advance the hearing on her motion for leave to file a third amended complaint. In light of the rulings above, the Court deems the ex parte and the motion scheduled for 10/15/2026 MOOT and the Court vacates the 10/15/2026 hearing date. <i>Moving parties to give notice.</i>
108	Norton vs. Sprouts Farmers Market, Inc., 22-01282213	Defendant, SF MARKETS, LLC dba Sprouts Farmers Market will and hereby does move the Court for Summary Judgment in its favor and against Plaintiff CHERIE NORTON. Alternatively, Defendant moves for Summary Adjudication of the following issues: ISSUE NO. 1: Plaintiff's negligence and premises liability causes of action fail because Defendant did not have actual notice of the alleged dangerous condition prior to Plaintiff's alleged incident. ISSUE NO. 2: Plaintiff's negligence and premises liability causes of action fail because Defendant did not have constructive notice of the alleged dangerous condition, as the undisputed evidence establishes that the area was inspected approximately 16–17 minutes before the alleged incident, and the condition developed thereafter. Initially, as to the alternative request for summary adjudication, Defendant seeks adjudication as to issues of actual and constructive notice. However, this request is not proper under CCP §437c(f)(1). ["A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs." CCP §437c(f)(1).] As such, the

		Court will treat this motion as one of summary judgment only. In this instance, on 9/21/22, Plaintiff filed a Complaint against Defendant SF MARKET, LLC (Erroneously sued herein as "SPROUTS FARMERS MARKET, INC.") which contains causes of action for general negligence and premises liability. In the Judicial Council Form Complaint, Plaintiff pleads, "As Plaintiff walked within the subject premises, she stepped on water and/or similar substance on the floor causing her to slip and fall, thereby causing Plaintiff to endure severe injury and pain." She also pleads, "Said Defendants, and each of them, fully and well knew, or should have known in the exercise of reasonable care, that the dirty and or wet floor in said establishment were in a dangerous and defective and unsafe condition, and a menace to Plaintiff and others lawfully on said premises, By reason of the aforesaid negligence, carelessness and recklessness of Defendants, and each of them, as aforesaid, and as a direct and proximate result thereof, dangerously dirty and/or wet floor that was not properly installed, maintained, cleaned and/or protected at said property causing Plaintiff to sustain the injuries and damages as hereinafter alleged." [Complaint, ROA 2.] Here, Defendant's motion does not indicate which element it is specifically attacking, but does argue that Plaintiff cannot establish Defendant had actual or constructive notice of the substance Plaintiff allegedly slipped upon. As to actual notice, Defendant argues, "There is no evidence that Defendant or its employees created the alleged condition, observed it prior to Plaintiff's incident, or received any complaints before the incident occurred." (Motion page 6:5-6.) Indeed, there does not appear to be much of a factual dispute as to actual notice. As to constructive notice, Defendant submits the Declaration of the Store Manager, Crystal Rodriguez, who declares, "During each operating day, Sprouts employees conduct both general sweeps/inspections (which is the entire store, including the produce department) and produce sweeps/inspections (limited to the produce department). During these sweeps, the employee conducting the sweep will inspect the floors for any liquid, debris or other foreign substances on the floor and will clean/sweep the aisles." (Decl. of Rodriguez¶1.)
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Additionally, she states, "Employees who perform the sweeps/inspections document that the sweep/inspection has been completed by swiping their employee badge to document the sweep via a time clock and then selecting the type of sweep that occurred – 'store sweep' or 'produce sweep'. The inspection is considered to be completed once the employee finished the sweep/inspection, and they subsequently log the same via a time clock." (Id. ¶2.)

To that end, an attached Store Sweep Update (Notice of Errata, Ex. G, ROA 153) indicates that (former) employee Angelo Proetti completed a produce sweep at 7:39:29 p.m. on 9/27/2020.

As it is undisputed that the fall occurred at approximately 7:55pm (UMF No. 5), the question is whether 16 minutes is a long enough period of time for Defendant to have discovered the substance upon which Plaintiff allegedly slipped.

In support of the issue of time, Defendant cites *Girvetz v. Boys' Market* (1949) 91 Cal.App.2d 827, wherein the Court held: "[W]here the only evidence is that the foreign object has been on the floor of the market for 'a minute and a half,' it must be held that it is insufficient to support an inference that the defendant proprietor failed to exercise the care required of him." (Id. at 831). The Court in *Girvetz* explained: "Obviously, the exact time that a dangerous condition must exist in order to charge the proprietor cannot be stated as a matter of law. It can only be held that, in the circumstances of the case now before the court, one and one-half minutes is too short a period." (Id. at 832). The Court explained that a contrary finding would essentially impose a duty of "utmost," rather than "ordinary," care. (Id.).

Defendant also cites to *Barrera v. Costco Wholesale Corp.* (9th Cir. Aug. 17, 2022, No. 21-16474) 2022 U.S. App. LEXIS 22927, where a summary judgment was affirmed where the area had been inspected approximately 18 minutes before the fall.

These cases are not abundantly helpful as unlike *Girvetz*, the last inspection was 16 minutes prior to the incident. And, *Barrera*, is an unpublished federal decision that is not binding on this Court and likewise assumed an actual, undisputed inspection.

Nevertheless, Defendant appears to have sustained its initial, substantive burden and the burden shifts to Plaintiff to create a triable issue of material fact.

	To that end, Plaintiff argues that a triable issue of material fact exists because, "The vegetable matter had been trampled by a lot of people for a long period of time, i.e. hours, in plain view of those employees. (PMF Nos. 27, 35, 38.)" (Opp page 12:13-16.) In support of this argument she refers to her deposition testimony and the video she took after her fall. As to what was involved in the incident, Plaintiff testified, "I can only say that I saw what looked like a slippery substance of some kind and also smashed spinach or other vegetable." (Guirguis Decl. ¶ 4, Exhibit 2, Norton Depo., Vol. II, 109:1-3.) When asked how long either had been on the floor, Plaintiff testified, "It appeared to be there a long time due to the fact it appeared to be smashed in little pieces." (Id. page 110:1-4.) The video, taken by Plaintiff after the incident, reveals a small amount of liquid substance, and what looks like a smashed leafy green. The type of vegetable is difficult to assess given its ruined state. Obviously, it is unclear whether Plaintiff herself reduced the vegetable to this smashed state by stepping on it, or whether it had been on the floor for a long period of time. While Plaintiff's assertion that the vegetable had been on the floor for a long period of time seems speculative, Plaintiff's arguments are sufficient to convince the Court that the matter should be determined as a question of fact for the jury. "Plaintiffs may demonstrate the storekeeper had constructive notice of the dangerous condition if they can show that the site had not been inspected within a reasonable period of time so that a person exercising due care would have discovered and corrected the hazard. (<i>Bridgman, supra</i>, 53 Cal.2d at p. 447.) In other words, if the plaintiffs can show an inspection was not made within a particular period of time prior to an accident, they may raise an inference the condition did exist long enough for the owner to have discovered it. (<i>Ibid.</i>) It remains a question of fact for the jury whether, under all the circumstances, the defective condition existed long enough so that it would have been discovered and remedied by an owner in the exercise of reasonable care." [<i>Ortega v. Kmart Corp.</i> (2001) 26 Cal.4th 1200, 1212-1213.]
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		Here, Plaintiff argues that there is no real evidence that Proetti made the sweep at all (indeed there is no testimony from Mr. Proetti); the slip occurred in the produce section which is a self-serve and highly trafficked area requiring a heightened duty of inspection; and Defendant's authorities do not support granting the motion as a matter of law. Given these arguments, Plaintiff has sufficiently established an inference the condition did exist long enough for the owner to have discovered it, sufficient to go to the jury. At a minimum, it raises a triable issue of fact and as a result, the Motion is DENIED in its entirety. <i>Plaintiff to give notice.</i>
109	Nguyen vs. Nguyen, 24-01371446	<i>Off-calendar.</i>